

Calendar Lines 5 – 6

Case Name: *Ramos et al. v. Branch Metrics, Inc.*
Case No.: 25CV481772

This is a putative class action asserting a sole cause of action under the California Invasion of Privacy Act (“CIPA”), Penal Code section 638.51. Before the Court are the following: (1) Defendant Branch Metrics, Inc.’s (“Branch” or “Defendant”) motion to stay proceedings, or alternatively, to stay discovery; and (2) Defendant’s demurrer to the Complaint.

As discussed below, Defendant’s motion to stay this action is GRANTED. The action is stayed pending the decision of the Court of Appeal, Second Appellate District, in *Variety Media, LLC v. Superior Court* (No. B350578) (“*Variety*”). Because the entire action is stayed, the hearing on Defendant’s demurrer is CONTINUED and the demurrer is not decided at this time. The Court sets a status conference as provided in the Order below.

I. Background

Plaintiffs Marcos Ramos and Brady Petrik (“Plaintiffs”) allege that Branch, a marketing-analytics company, deployed a software “Tracker” (an SDK and website code snippet) on third-party websites and applications (i.e., bleacherreport.com, m.imdb.com, and the IMDb mobile application) that collected and transmitted to Branch users’ IP addresses, device identifiers, and related data without a court order or user consent, in violation of the statute’s prohibition on installing or using a pen register or trap-and-trace device. (Complaint, ¶¶ 2, 28–51, 78–91.)

Branch demurred to the Complaint on May 8, 2026, contending principally that section 638.51 does not apply to internet or website technology and, in the alternative, that Plaintiffs fail to allege that Branch “installed or used” a pen register, that the Tracker is not a “pen register,” and that Plaintiffs allege no cognizable privacy interest. (Dem., pp. 4–15.) On June 10, 2026, Branch moved to stay the action pending the appeal in *Variety* or, alternatively, to stay discovery pending resolution of the demurrer. Plaintiffs opposed both motions on July 28, 2026, and Branch replied on August 5, 2026. No class has been certified and no trial date has been set.

II. Request for Judicial Notice

In connection with its reply, Branch requests judicial notice of three court records (RJN, Ex. A–C): (A) the Court of Appeal case summary in *Variety* (No. B350578, Second Appellate District, Division Three), which reflects an oral-argument date of August 25, 2026; (B) the unopposed motion to stay the appeal filed June 12, 2026 in *Drummer v. CoStar Group, Inc.*, Ninth Circuit No. 26-1652; and (C) the Ninth Circuit’s June 22, 2026 order granting that motion and staying that appeal pending *Variety*. These are records of a court of this state and of the federal courts and are properly noticeable. (Evid. Code § 452(d); *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 929; *Hart v. Darwish* (2017) 12 Cal.App.5th 218, 224.)

The Request for Judicial Notice is GRANTED as to the existence and legal effect of these documents, though not as to the truth of any hearsay statements within them.

III. Motion to Stay

A. Legal Standard

“[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141, quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254; see *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”].) Courts have recognized this power to stay an action to await the outcome of another proceeding that may determine some or all of the issues before the court. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 696–697 (*Koch-Ash*).)

B. The Variety Appeal Presents the Question Dispositive of This Action

Plaintiffs’ Complaint rises or falls on a single, threshold question of statutory interpretation: whether Penal Code section 638.51 reaches website tracking technologies such as the Tracker or is instead confined to traditional telephonic surveillance. That is the precise

question raised by Branch’s demurrer (Dem., pp. 4–9) and disputed in Plaintiffs’ opposition (Dem. Opp., pp. 3–11). It is also the precise question now pending before the Court of Appeal in *Variety*, which arises from a trial court order overruling a demurrer that advanced the same “text, structure, and legislative history” argument Branch presses here. (Mot., pp. 1, 2–3; Stay Reply, pp. 1–2 and fn. 2.)

A published decision of the Court of Appeal on that question would be binding on this Court. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455; Mot., p. 5.) There is at present no published California appellate authority resolving the issue. A decision in *Variety* therefore is likely to be dispositive of, or at a minimum to substantially narrow and clarify, the sole claim in this action. Awaiting that guidance, rather than deciding the same unsettled question now, only to risk revisiting it after the appellate court rules, serves the orderly administration of justice. (Mot., p. 5.)

C. The Requested Stay Is Tied to a Defined Event and Is Not Indefinite

Plaintiffs’ principal objection is that the stay would be indefinite because, at the time the motion was filed, no decision date (and indeed no oral argument date) could be predicted. (Stay Opp., pp. 2–3.) That objection has been overtaken by events. As reflected in the record now before the Court, oral argument in *Variety* was set for August 25, 2026. (Stay Reply, pp. 1–2; RJN, Ex. A.) The requested stay is thus tied to a defined and imminent event, not an open-ended one, which distinguishes the authorities on which Plaintiffs rely (Stay Opp., pp. 2–3). The relevant inquiry is whether the stay is keyed to a definite event, not whether the exact date of decision can be forecast; some uncertainty as to the precise date of an appellate opinion is inherent in any stay pending appeal. (Stay Reply, p. 3.)

Plaintiffs’ further concern that the losing party may seek review in the Supreme Court, prolonging the stay (Stay Opp., p. 3), is speculative on this record. Branch’s request is directed to the forthcoming Court of Appeal decision, and the Court retains authority to lift or modify the stay should circumstances change. The Court likewise acknowledges Plaintiffs’ point that publication of the *Variety* opinion is not guaranteed. (Stay Opp., pp. 4–5.) Even so, the appellate court’s analysis will provide meaningful guidance, and the status-conference

mechanism set out below permits the Court to revisit the stay promptly if *Variety* is resolved without a citable opinion, is de-published, settles, or is otherwise delayed.

D. The Balance of Hardships and Judicial Economy Favors a Temporary Stay

Absent a stay, the parties and the Court would expend substantial resources litigating a putative class action (including broad merits and class discovery, and potentially class certification) on a claim that a forthcoming appellate decision may eliminate or reshape. (Mot., pp. 6, 8; Stay Reply, p. 4.) The Court agrees with Plaintiffs that the ordinary burden of defending a lawsuit, standing alone, is not a sufficient hardship. (Stay Opp., pp. 3–4.) Nevertheless, the hardship here is not merely the cost of litigation generally; it is the prospect of conducting potentially unnecessary and non-repeatable proceedings on the very question the Court of Appeal is poised to decide. That consideration properly informs the Court’s exercise of its case-management discretion. (Stay Reply, p. 4; *Koch-Ash, supra*, 180 Cal.App.3d at pp. 696–698.)

The countervailing prejudice to Plaintiffs is limited. This action is at an early stage: no class is certified, discovery has only begun, and no trial date is set. (Mot., p. 6; Stay Reply, pp. 3–4.) Plaintiffs’ concern about faded memories and lost evidence (Stay Opp., pp. 2–3) is stated in general terms; Plaintiffs identify no specific witness who will become unavailable and no particular evidence at risk of loss during a brief stay. (Stay Reply, pp. 3–4.) Any residual risk can be addressed through the parties’ preservation obligations and periodic status reporting, which the Court imposes below. The Court further notes that other state and federal trial courts have stayed materially similar CIPA actions pending *Variety*. (Mot., p. 3; Stay Reply, pp. 6–7.) Those orders are not binding and are referenced only as reflecting a prevailing case-management approach; the Court reaches its conclusion on the record and considerations particular to this action.

E. Conclusion

Weighing the competing interests, the Court concludes that a temporary stay pending the decision in *Variety* will conserve the resources of the parties and the Court, avoid the risk of

inconsistent or superseded rulings on an unsettled and potentially dispositive question of law, and promote the orderly administration of justice, without working undue prejudice to Plaintiffs. The motion to stay the action is GRANTED. In light of that ruling, the Court does not reach Branch's alternative request to stay discovery pending the demurrer. (Mot., pp. 8–9; Stay Reply, pp. 8–9.)

V. Demurrer

Because the Court stays the entire action, it does not reach the merits of Branch's demurrer at this time. The demurrer raises the same statutory-interpretation question presented in *Variety* (Dem., pp. 4–9; Dem. Opp., pp. 3–11), and resolving it now would risk requiring reconsideration after the Court of Appeal rules—the very inefficiency the stay is intended to avoid. The hearing on the demurrer is therefore CONTINUED, to be reset following the status conference and the decision in *Variety*. The Court expresses no view on the merits of the demurrer, and all of Branch's arguments and Plaintiffs' responses are preserved for decision after the stay is lifted.

VI. Conclusion

1. Defendant's motion to stay the action is GRANTED. This action is STAYED in its entirety pending issuance of the decision of the Court of Appeal in *Variety Media, LLC v. Superior Court* (No. B350578), or further order of this Court.

2. The hearing on Defendant's demurrer to the complaint is CONTINUED and is not decided at this time. It will be reset, if necessary, following the status conference as set below.

3. During the stay, all parties shall preserve all documents, electronically stored information, and other evidence relevant to this action, and shall comply with all preservation obligations imposed by law.

4. The parties shall file a joint status report within ten (10) court days after the Court of Appeal issues its decision in *Variety*, or by February 11, 2027, whichever occurs first, addressing the effect of *Variety* (including any decision, publication status, settlement, or further review) on this action and proposing next steps.

5. Case Management Conference August 12, 2026 at 2:30 p.m. is VACATED.
6. A status conference is set for March 3, 2027, at 2:30 p.m., in Department 5. Any party may move to lift or modify the stay on noticed motion or, on a showing of good cause, by ex parte application, should *Variety* be resolved without a citable opinion or be materially delayed.

Defendant shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Case Name:

Case No.:

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Calendar Lines 7 – 12

Case Name: *Pure Lithium Corporation v. Panasonic Corporation of North America*
Case No.: 26CV487768

Summary of Rulings

No.	Matter	Ruling
1	PCNA's motion to extend time to file motion to seal (7/21/26)	GRANTED
2	Pure Lithium's motion to seal portions of the complaint and Exs. A–B (3/9/26)	GRANTED in part; DENIED as to the agreements
3	Pure Lithium's motion to seal portions of its PI papers (6/26/26)	GRANTED
4	PCNA's motion to seal portions of Pure Lithium's PI papers (7/21/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
5	PCNA's motion to seal portions of its opposition (7/30/26)	GRANTED in part; DENIED in part; balance DENIED without prejudice
6	Pure Lithium's motion to seal portions of its reply and of PCNA's opposition (8/6/26)	GRANTED
7	PCNA's ex parte application to strike and to file sur-reply (8/10/26)	GRANTED in part: sur-reply and supplemental sur-reply permitted; motion to strike DENIED
8	Pure Lithium's motion for preliminary injunction (6/26/26)	CONTINUED; interim order to be entered

I. Motions to Seal

A. Legal Standard

Court records are presumptively open. (Cal. Rules of Court, rule 2.550(c); *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1208–1210.) Sealing requires express findings of an overriding interest that overcomes the right of access, that the interest supports sealing, a substantial probability of prejudice absent sealing, narrow tailoring, and the absence of